



GE India Industrial Private Limited
(Division: John F Welch Technology Centre,
formerly GE India Technology Centre Pvt Ltd)

PURCHASE ORDER

Page 1 Of 4

HEADERS

PO Number	100066469	Date	05-May-2025
Revision	3	Revision Date	20-Mar-2026
Release No.		Status	REVISED

BUYER

Name	R, Manjunatha Rao	E-mail	manjunatharao.r@geaerospace.com
Phone	+91 80 40882749		

SUPPLIER

A37049	
Lease Plan India Private Limited A37049	Lease Plan India Private Limited
2nd Floor, Platina M,41, 4th Block,17th main, 100 Road, Koramangala	Contact
Bangalore	Phone
KA	Fax
560034	E-mail
India	
Supplier Registration Number	29AAACL6053B1ZS

SHIP TO

GE India Industrial Private Limited (Division: John F Welch Technology Centre)

No: 122, EPIP, Phase 2,	Deliver To/Requestor Name	Bathini, Siva
Hoodi Village, Whitefield Road	Deliver To/Requestor E-mail	Siva.Bathini@geaerospace.com
EPIP	Deliver To/Requestor Phone	+91 (99123) 23765
KA		
Bangalore		
560066		
Karnataka		
India		

BILL TO

GE India Industrial Private Limited (Division: John F Welch Technology Centre)
CIN:U31500DL1992PTC194724 PAN#AAACG4901D

No: 122, EPIP, Phase 2,
Hoodi Village, Whitefield Road
EPIP
KA
Bangalore
560066
Karnataka
India

Regd Office:

Unit F9, First Floor, Hyatt Delhi Residences, Aerocity, New Delhi – 110 037



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PO Number	100066469	Date	05-May-2025
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TERMS

Payment Instructions	Net 30 days' credit	Payment Terms	01 30
		Currency	INR

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PO Number	100066469	Date	05-May-2025
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#	PO Line Details	Unit Price	Amount
1	Open PO towards employee leased cars rental for the period from April 2025 to March 2026 . Billing to be done at actuals Qty 57500000 UOM Each Need By 31-Mar-2026 Promised By 31-Mar-2026 HSN CODE 85169000(ELECTRIC INSTANTANEOUS OR STORAGE WATER HEATERS AND IMMERSION HEATERS; ELECTRIC SPACE HEATING APPARATUS AND SOIL HEATING APPARATUS; ELECTROTHERMIC HAIR-DRESSING APPARATUS (FOR EXAMPLE, HAIR DRYERS, HAIR CURLERS, CURLING TONG HEATERS) AND H)	1	57,500,000.00
2	0% GST Open PO towards Insurance Premium on employee leased cars for the period from April 2025 to March 2026. Billingto be done at actuals Qty 27500000 UOM Each Need By 31-Mar-2026 Promised By 31-Mar-2026 HSN CODE 49011010(PRINTED BOOKS, BROCHURES, LEAFLETS AND SIMILAR PRINTED MATTER, WHETHER OR NOT IN SINGLE SHEETS IN SINGLE SHEETS, WHETHER OR NOT FOLDED : PRINTED BOOKS)	1	27,500,000.00
3	Open PO towards Fleet Management fees on employees leased cars for the period from April 2025 to March 2026 . Billingto be done at actuals Qty 19000000 UOM Each Need By 31-Mar-2026 Promised By 31-Mar-2026 HSN CODE 9985(Combined office administrative services)	1	19,000,000.00
4	Open PO towards employee leased Electric cars rental for the period from April 2025 to March 2026. Billingto be done at actuals Qty 6000000 UOM Each Need By 31-Mar-2026 Promised By 31-Mar-2026 HSN CODE 9967(Goods transport agency services for road transport)	1	6,000,000.00

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PO Number	100066469	Date	05-May-2025
Revision	3	Revision Date	20-Mar-2026
Release No.		Status	REVISED

#	PO Line Details	Unit Price	Amount
Grand Total in Words: RUPEES Eleven Crore only		Grand Total	110,000,000.00
PO Amount is Exclusive of Tax			
Tax will be deducted at Source as per Indian Laws wherever applicable.			

SPECIAL INSTRUCTIONS

Bill to be certified by user
"All Import Ex-work/FOB shipments are to be routed through our Nominated Forwarder as specified in the Covering Letter"
"Mode of Shipment : Ref. the covering letter"

TAX INFORMATION

GST Registration Number 29AAACG4901D1Z0

ADDITIONAL REMARKS

Note:

1. Machine/Equipment must have lockout and tagout (energy isolating) capability and 360 deg M/C guarding wherever necessary.
2. This PO being system generated there are separate Terms and conditions attached to it namely
 - 1) Goods, Services, Goods & Services &
 - 2) Software, Software & Services. Please read the terms and conditions applicable to your supply/services before acknowledging it.
3. By accepting this order, you confirm the acceptance of the terms and conditions mentioned overleaf which is an integral part of this PO.
4. This PO shall be deemed accepted by supplier unless any concern is brought to GE notice within 48 hours of PO date.
5. To know your Invoice payment status please visit <http://www.gepays.com>
6. At the time of invoicing, please capture your PAN# without fail for transactions >INR 2 Lakhs. This note is specific to Indian Vendors as per CBDT Notification.

This is computer Generated Purchase Order, hence no signature required.

Regd Office:

Unit F9, First Floor, Hyatt Delhi Residences, Aerocity, New Delhi – 110 037

GEIPL (DIV: John F Welch Technology Centre, formerly GE India Technology Centre Pvt Ltd) PURCHASE ORDER OF TERMS AND CONDITIONS (Goods, Service, GOODS & Service)

INTEGRITY STATEMENT:

Each Party covenants that it is committed to unyielding integrity and will act in a manner consistent with the GE Integrity Guide for Suppliers, Contractors and Consultants, a copy of which is available in several languages at the following link: <http://www.gesupplier.com/html/SuppliersIntegrityGuide.htm> , as may be amended or substituted from time to time. If you as a contracting party become aware of any situation that appears to be inconsistent with any of the policies mentioned in GE's Integrity: Spirit and the Letter booklet, you undertake to and shall communicate the same to Mr. Ashok Kumaraswamy (Phone: +91 80 40881537 email: Ashok.KA@ge.com) or you can report it to ombudsperson@corporate.ge.com

You also acknowledge the receipt of the Spirit and Letter Integrity Policy applicable to Suppliers also available at <https://www.ge.com/in/sites/www.ge.com.in/files/TheSpirit&TheLetter.pdf>. You have gone through the same and understood the contents. As a contracting party you shall sign a copy of the same and return along with this Agreement.

1. ACCEPTANCE AND TERMS AND CONDITIONS:

(a) Seller accepts this Order and any amendments thereto by signing the acceptance copy and returning it to GE promptly. Performance of the work called for by this Order, under any circumstances, including in the absence of Seller's written acknowledgment, shall be deemed acceptance of this Order. (b) By acceptance of this Order, Seller agrees to be bound by, and to comply with all the terms and conditions of this Order, including any supplements and all specifications and other documents herein referenced. (c) This Order does not constitute an acceptance by GE of any offer to sell, quotation, or proposal. Reference in this Order to any such offer to sell, quotation, or proposal shall not constitute a modification of any of the terms and conditions of this Order. ANY ATTEMPTED ACKNOWLEDGMENT OF THIS ORDER CONTAINING TERMS AND CONDITIONS INCONSISTENT WITH OR IN ADDITION TO THE TERMS AND CONDITIONS OF THIS ORDER IS NOT BINDING UPON GE UNLESS SPECIFICALLY ACCEPTED BY GE IN WRITING, which under this Order shall not include email, AND GE HEREBY REJECTS SUCH PROPOSED MODIFICATIONS. (d) Any acceptance, approval and/or payment made by GE in connection with work hereunder shall not relieve Seller of the responsibility for completeness, timeliness, accuracy, fitness and quality of performance.

2. DEFAULT :

Time is of the essence with this Order. Except in instances of Force Majeure (as defined below), and without the fault or negligence of Seller or its suppliers, direct and indirect at every subcontract level, GE may by written notice of default to Seller

(a) terminate the whole or any part of this Order if: (1) Seller fails to perform within the time specified herein or any extension thereof; or (2) Seller fails to perform any other provisions of this Order or instructions of GE, or fails to make progress as to endanger performance of this Order in accordance with its terms, and in either of these two circumstances does not cure such failure within a period of ten (10) days or longer period as GE may authorize in writing after receipt of notice from GE specifying such failure; or (3) Seller fails to furnish the Compliance Documents (as defined below) within the timelines specified by GE or otherwise fails to co-operate with GE in the course of its conducting the Compliance Audit(s) (as defined below) in accordance with the applicable policies, from time to time; and (b) procure, upon such terms as it shall deem appropriate, supplies or services similar to those so terminated. Seller shall continue performance of this Order to the extent not terminated and shall be liable to GE for any excess costs for such similar supplies or services. If it is determined that GE has improperly terminated this Order for default, such termination shall be deemed to be a Termination for Convenience. As an alternate remedy, and in lieu of termination for default, GE, at its sole discretion, may elect (1) to extend the delivery schedule and/or (2) to waive other deficiencies in Seller's performance, in which case an equitable reduction in the purchase price shall be negotiated. In the event Seller for any reason anticipates difficulty in complying with the required delivery date, or in meeting any other requirements of this Order, Seller shall promptly notify GE in writing. If Seller does not comply with GE's delivery schedule, GE may require delivery by fastest way and resulting charges must be fully prepaid and absorbed by the Seller. The rights and remedies of GE provided in this Article shall not be exclusive and are in addition to any other rights and remedies provided by law or under this Order.

3. FORCE MAJEURE: Neither party shall be liable to the other for delays or failures in performance resulting from causes beyond the reasonable control of that party, including, but not limited to, acts of God, labour disputes or disturbances, material shortages or rationing, riots, acts of war, governmental regulations, communication or utility failures, or casualties ("Force Majeure"); provided that each party subject to any event of Force Majeure shall have given notice within a period of fifteen (15) days from the date of Force Majeure occurrence of any such anticipated default, failure or delay as soon as reasonably possible after it obtains, or reasonably should have obtained, as the case may be, knowledge of the conditions or circumstances constituting an event of Force Majeure, and shall, to the extent reasonably possible, use its best efforts to remove or remedy such cause.

4. PRICES and PAYMENT: 4.1 All prices are firm and shall not be subject to change. Seller's price excludes all taxes, charges, fees, duties or levies applicable to the goods and/or services purchased under this Order. If GE is required by government regulation to withhold taxes for which Seller is responsible, GE shall deduct such withholding tax from payment to Seller and provide to Seller a valid tax receipt in Seller's name. Should either party realize that any tax included or omitted as a result of the transactions hereunder was made in error, the Parties shall cooperate to resolve such overpayment or underpayment and to further assist in refunding or charging of any mistaken payments. Neither party is responsible for taxes on the other party's income or the income of the other party's personnel or subcontractors. If no firm or other price appears, no payment in excess of any monetary limitation appearing on the face of the Order shall be permitted without the prior written approval of GE. Pricing shall not be adjusted without prior written approval of GE. No extra charges of any kind will be permitted pursuant to this Order unless specifically agreed to in writing by GE.

4.2 Notwithstanding anything set forth in this Order, should Seller fail to furnish any or all of the Compliance Documents within the timelines prescribed by GE or otherwise fail to co-operate with GE during the Compliance Audit conducted by GE, GE may at its sole discretion withhold any or all payments due to the Seller under this Order.

4.3 Unless otherwise stated on the face of this Order, payment terms are due net Hundred and Twenty (120) days from the payment start date. The payment start date is the later of 1) The delivery date identified on the Order, (2) The received date

of the goods and/or services in GE's receiving system or (3) The date of receipt of valid invoice by GE. Seller's invoice shall in all cases bear GE's Order number. GE shall be entitled to reject any invoices failing to note GE's Order number or that are otherwise inaccurate. Any resulting delay in payment shall be Seller's responsibility. Seller warrants it is authorized to receive payment in the currency stated in this Order.

4.4 Seller agrees it shall ensure that GE receives the status of a most-favored customer with respect to matters of pricing for goods sold hereunder. If Seller agrees to more favorable terms to any of its other customers at the time of negotiations, or during the term of this Agreement, Seller will, within thirty (30) calendar days, notify GE in writing and ensure GE receives these more favorable pricing terms for all Services provided hereunder retroactive to the date of such offer - and for so long as those terms are offered to other customers. Upon such notice, this Agreement will be deemed by all parties to have been amended to incorporate all such favorable changes - excepting any changes as may be rejected in writing by GE. Seller agrees to provide GE with certification of compliance with this Article, completed by an authorized Seller official, upon request by GE.

5. **INSPECTION:** All goods and materials related in any way to the goods subject to this Order (including without limitation raw materials, components, intermediate assemblies, tools and end products and services) shall be subject to inspection and test by GE and its Customer at all times and places, including sites where the items are created or performed, whether at Seller's premises, its supplier's premises or elsewhere. If any inspection or test is made on the premises of Seller or its supplier, Seller without additional charge shall provide all reasonable facilities and assistance for the safety and convenience of the inspectors. If specific GE tests, inspections or witness points ("inspection points") are included in this Order, the goods shall not be shipped without an inspector's release or written waiver of inspection with respect to each such point; and Seller shall notify GE in writing at least twenty (20) days prior to each of Seller's scheduled final and intermediate inspection points. All inspections and tests on the premises of Seller or its supplier shall be performed in such a manner as not to unduly delay the work. GE's final acceptance or rejection of the goods shall be made as promptly as practical after delivery, except as otherwise provided in this Order, but failure to (a) inspect and accept, (b) reject goods, or (c) failure to detect defects by inspection, shall neither relieve Seller from responsibility for goods not in accordance with Order requirements nor impose liabilities on GE. Seller shall provide and maintain an inspection and process control system acceptable to GE and its Customer covering the goods hereunder. Records of all inspection work by Seller shall be kept complete and available to GE and its Customer during the performance of this Order and for such longer periods as may be specified in this Order.

6. **WARRANTIES:** (a) Seller represents that the Seller has all requisite corporate power and authority to execute, deliver and perform its obligations under this Order (b) Seller's and the subcontractors' performance of the obligations under this Order will not constitute (i) a violation of any judgment, order, or decree; (ii) a default under any material contract by which it or they are bound; or (iii) an event that would, with notice and/or lapse of time, constitute such a default; (c) Seller warrants that all goods sold hereunder or pursuant hereto will be free of any claim of any nature by any third person and that Seller will convey clear title thereto to GE as provided hereunder. (d) Seller warrants and represents that all goods sold hereunder or pursuant hereto will be of merchantable quality, free from all defects in design, workmanship and materials, and will be fit for the particular purposes for which they are purchased and that the goods are provided in strict accordance with the specifications, samples, drawings, designs or other requirements (including performance specifications) approved or adopted by GE. (e) Any attempt by Seller to limit, disclaim, or restrict any such warranties or remedies of GE, by acknowledgment or otherwise, in accepting or performing this Order, shall be null, void, and ineffective without GE's written consent. In the event of any nonconformance with any warranty applicable to this Order, Seller shall correct such nonconformance, and any damage resulting therefrom, at its cost and to GE's satisfaction. GE shall not be billed for any task(s) performed unsatisfactorily or defective parts, materials and equipment and shall be reimbursed within thirty (30) days by Seller upon demand of GE if an invoice has been previously paid for such improper or defective work or goods. All expenses (including, but not limited to, shipping, manufacturing and labour expenses) incurred by GE in the exercise of its rights hereunder, at law or in equity, shall be reimbursed by the Seller.

7. **REJECTIONS :** If any of the goods Ordered are found at any time to be defective in material or workmanship, or otherwise not in conformity with the requirements of this Order, including any applicable drawings and specifications, GE, in addition to such other rights it may have by contract or by law, at its option and sole discretion may: (a) reject and return such goods at Seller's expense; (b) require Seller to inspect the goods and remove and replace non-conforming goods with goods that conform to this Order. If GE elects option (a) above, freight collect and risk of loss will be passed to Seller upon GE's delivery to the common carrier. If GE elects option (b) above and Seller fails to promptly make the necessary inspection, removal and replacement, GE may at its option inspect and sort the goods; Seller shall pay the cost thereof.

8. **GE'S PROPERTY:** Unless otherwise agreed in writing, all tools, equipment or material of every description furnished to Seller by GE or specially paid for by GE, and any replacement thereof, or any materials affixed or attached thereto, shall be and remain the personal property of GE. Such property, and whenever practical each individual item thereof, shall be plainly marked or otherwise adequately identified by Seller as "Property of General Electric" and shall be safely stored separate and apart from Seller's property. Seller shall not substitute any property for GE's property and shall not use such property except in filling GE's Orders. Such property while in Seller's custody or control shall be held at Seller's risk, shall be kept insured by Seller at Seller's expense in an amount equal to the replacement cost with loss payable to GE and shall be subject to removal at GE's written request, in which event Seller shall prepare such property for shipment and shall redeliver to GE in the same condition as originally received by Seller, reasonable wear and tear excepted, all at Seller's expense. GE's property shall further include GE's software, technical data, know-how and any intellectual property rights that may be provided to the Seller pursuant to the execution of this Order, which property is to be returned to GE at the termination (by reason of completion or otherwise) of this Order.

9. **CHANGES :** GE may at any time, in writing, make changes within general scope of this Order, in any one or more of the following: 1. drawings, designs, or specification where the goods to be furnished are to be specially manufactured for GE in accordance therewith; 2. method of shipment or packing; 3. place of delivery; and 4. the amount of Government-furnished property. If any such change causes an increase or decrease in the cost of, or the time required for the performance of, any work under contract, whether or not modified, an equitable adjustment shall be made in the contract price and/or delivery schedule, and the Order shall be modified in writing accordingly. Any claim by Seller for adjustment under this Article must be asserted within thirty (30) days from the date of receipt by Seller of the notification of change; provided, however, that GE, if it so chooses, may receive and act upon any such claim asserted at any time prior to final payment under this contract. Any change in this Order shall be authorized only by a duly executed Order amendment hereto.

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10. NON-ASSIGNMENT: Assignment of this Order or any interest herein without written consent of GE shall be void.

11. SET-OFF :

GE shall be entitled at all times to set off any amount owing at any time from Seller to GE or any of its affiliated companies against any amount payable at any time by GE in connection with this Order.

12. COMPLIANCE WITH LAWS:

12.1 General. Seller represents, warrants, and certifies that it will comply with applicable central, state, provincial or local law, regulation, directive or ordinance and all lawful orders, rules, and regulations issued thereunder, including without limitation those regarding environmental health and safety and records retention. Seller shall also comply with good industry practices, including the exercise of that degree of skill, diligence, and prudence reasonably expected from a competent and lawful Seller engaged in the same type of manufacture under similar circumstances. No forced or prison labour, or labour in violation of minimum working age law in the country of manufacture, may be used in connection with this Order. If such labour is determined by GE to have been used in connection with this Order, GE shall have the right to immediately terminate the Order without further compensation. Seller agrees to cooperate fully with any inspection efforts of GE intended to verify Seller's compliance with this Article. Seller agrees to provide at GE's request certifications of any applicable legal requirements or to update any and all certifications, representations and warranties under this Order, in form and substance satisfactory to GE.

12.2 EHS. Seller represents, warrants, and certifies that it will take appropriate actions to provide a safe and healthy workplace, and to protect local environmental quality; and, has established an effective program to ensure any suppliers it uses under this Order will be in conformance with this Order. In addition, Seller shall comply with any provisions, certifications (including updates), representations, agreements or contract clauses required to be included or incorporated by reference or operation of applicable law in the Order.

12.3 GE has the right to terminate the contract for safety problems without any penalty to GE.

12.4 Export Control Compliance:

a) In the event Seller transfers material, data, and proprietary information of any type, Seller shall be responsible for knowledge of and compliance with all applicable export laws and regulations of the country from which Seller transfers such data. Violation of any such laws or regulations by Seller will be cause for immediate termination by GE. Seller agrees to indemnify GE for any costs incurred as a result of the Seller's failure to meet the obligations of this Article. The Seller hereto agrees that such compliance shall include that none of the material, data and proprietary information, nor the direct product of such will be exported or re-exported directly or indirectly if prohibited by law. Seller also agrees that no GE proprietary information, material and data arising under this Order, nor the direct product of such, will be transferred directly or indirectly, to any third party, without express written authorization of GE.

b) In connection with performance of any work under this Order, Seller, at its own cost, shall be responsible for: (1) determining whether, and the extent to which, any government-funded intellectual property will be used; (2) If any such government-funded intellectual property will be used, obtaining on behalf of GE a license under which the government shall grant to GE the unlimited right to use such intellectual property; determining whether, and the extent to which, export licenses are required, under this Order from Seller's country to GE; and obtaining required export licenses.

c) All of GE'S obligations under this Order are conditional upon the issuance of intellectual property and/or export licenses by the government granting GE the right to use such government-funded intellectual property and/or to export from Seller's country all deliverables, whether tangible or intangible, under this Order.

12.5 Compliance Audit:

a) GE may from time to time in accordance with the prevailing GE policy(ies) conduct a compliance audit to determine whether the Seller is compliant with various labour or other legislations prevalent at the time of such audit ("Compliance Audit").

b) For the purpose carrying out such Compliance Audit, GE may request Seller to provide to GE, its internal or external auditors, data, documents and records maintained or required to be maintained by Seller under applicable labour or other legislations ("Compliance Documents"). The Seller shall upon the request of GE or its authorized auditors and within such timeframes as provided, furnish such Compliance Documents and shall co-operate with GE or its authorized auditors in its conduct of such Compliance Audit.

13. SELLER'S CONFIDENTIAL OR PROPRIETARY INFORMATION: Any knowledge or information which Seller has disclosed or may hereafter disclose to GE, which in any way relates to the goods or services covered by this Order and GE's Material Schedule, shall not, unless otherwise specifically agreed to in writing by GE, be deemed to be confidential or proprietary information, and shall be acquired by GE, free from any restrictions (other than a claim for patent infringement), as part consideration for this Order.

14. WORK ON GE'S OR ITS CUSTOMER'S PREMISES : If Seller's work under the Order involves operations by Seller on the premises of GE or one of its customers: (a) Seller shall take all necessary precautions to prevent the occurrence of any injury to persons or damage to property during the progress of such work, and except to the extent that any such injury or damage is due to GE's or its Customer's negligence, shall defend and indemnify GE against any claim which may result in any way from any act or omission of Seller, its agents, employees or subcontractors; and (b) Seller shall obtain and maintain for the duration of this Order insurance in forms and amounts as is required by applicable law and as is satisfactory to GE. Seller agrees to name GE as an additional insured on all the above-mentioned policies. At GE's request, Seller shall furnish to GE a Certificate of Insurance completed by its insurance carrier(s) certifying that the required insurance coverages are in effect and will not be canceled or materially changed until thirty (30) days after prior written notice has been delivered to GE. It is the intent of both parties that Seller's insurance be primary to any insurance owned or secured by GE. Nothing in this Paragraph shall be taken as limiting Seller's liability to GE or any other party.

15. INSOLVENCY: If Seller ceases to conduct its operations in the normal course of business, including inability to meet obligations as they mature, or if any proceeding under bankruptcy or insolvency laws is brought by or against Seller, or a receiver for Seller is appointed or applied for, or an assignment for the benefit of creditors is made by Seller, GE may terminate this Order without liability, except for deliveries previously made or for goods covered by this Order then completed and subsequently delivered in accordance with the terms of the Order.

16. TERMINATION FOR CONVENIENCE: GE may terminate all or any part of this Order at any time by written notice to Seller. Upon termination, GE and Seller shall negotiate termination charges that will compensate Seller for costs reasonably incurred

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prior to the date of termination, including profit of such costs, which will be identified by Seller within 30 days of termination.

17. **GE'S INFORMATION:** Seller shall keep confidential any technical, process or economic information provided by or derived from drawings, specifications and other data furnished by GE in connection with this Order and shall not directly or indirectly divulge, such information for the benefit of any other party without obtaining GE's prior written consent. Except as required for the efficient performance of this Order, Seller shall not use such information or make or permit copies to be made of such information without prior written consent of GE. If any reproduction is made without prior consent, notice referring to the requirements of the foregoing paragraph shall be provided thereon. If disclosures or reproductions are made that are inconsistent with this Article, Seller must provide immediate notice to GE and co-operate with GE to restrict further disclosures of GE's confidential information in violation with this Article. Upon completion or termination of this Order, Seller shall promptly return to GE all materials incorporating any such information and any copies thereof, except for one record copy. The Seller acknowledges the competitive value and confidential nature of GE's confidential information and that disclosure thereof to any third party could be harmful to GE, competitively and otherwise. If the Seller, or any party to whom the Seller transmits the

confidential information pursuant to this Order, becomes legally compelled to disclose any of the confidential information, the Seller, to the extent permitted by law, shall provide the GE with prompt notice so that GE may seek a protective order or other appropriate remedy and shall cooperate in seeking reasonable protective arrangements requested by GE. If such protective order or other remedy is not obtained, the Seller shall furnish only that portion of the confidential information which, in the written opinion of its counsel, is legally required, and the Seller shall exercise its reasonable best efforts to obtain reasonable assurance that confidential treatment will be accorded the confidential information. The Seller acknowledges and agrees that, given the nature of the confidential information and the competitive or other damage that may result to GE if information contained therein is disclosed to any third party in breach of the obligations set forth in this Order, money damages may not be a sufficient remedy for any breach of this Order by the Seller, and that, in addition to all other remedies, GE may be entitled to specific performance and injunctive or other equitable relief as deemed proper or necessary by a court of competent jurisdiction as a remedy for any such breach.

18. **ENTIRE AGREEMENT:** This Order, with such documents as are expressly incorporated herein by reference, is intended by the parties as a final expression of their agreement with respect to terms as included herein, and is intended as a complete and exclusive statement of the terms of this agreement. No course of prior dealings between the parties and no usage of the trade shall be relevant to determine the meaning of this agreement even though the accepting or acquiescing party has knowledge of the nature of the performance and opportunity for objection.

19. **WAIVER:** No claim or right arising out of a breach of this contract can be discharged in whole or in part by a waiver or renunciation of the claim or right unless the waiver or renunciation is supported by consideration and is in writing signed by the aggrieved party. The failure of GE to enforce at any time or for any period of time any of the provisions hereof shall not be construed to be a waiver of such provisions or of the right of GE thereafter to enforce each and every such provision.

20. **INDEMNIFICATION:** Seller shall indemnify, defend and harmless against any claim, suit or proceeding brought against GE or its Customers that is based on a claim that any article, apparatus, software, work, or any part thereof constituting goods furnished under this Order, as well as any device or process necessarily resulting from the use thereof, constitutes an infringement of any patent, copyright, or other claimed intellectual property right of a third party, if notified promptly in writing and given authority, information, and assistance (at Seller's expense) for the defense of same, and Seller shall pay all damages and costs awarded therein. In case use of said article, apparatus, part, device or process is enjoined, Seller shall, at its own expense either procure for GE the right to continue using said article or apparatus, part or device; or replace same with a non-infringing equivalent; or remove said article or apparatus and refund the purchase price and the transportation and installation costs thereof. The Seller further agrees to indemnify and hold harmless GE, its directors, officers, agents and employees from all liabilities or expenses (including but not limited to reasonable attorney fees and costs of investigation and defense) actually suffered and incurred by GE resulting from: (i) any injury/death of any person or destruction to tangible or intangible property or any business loss resulting from material breach of the terms of this Agreement (ii) any violation of any statute, ordinance, or regulation; (iii) any act or omission constituting gross negligence or willful misconduct or breach of fiduciary duty in connection with Seller's performance of this Agreement.

21. **LIMITATION OF LIABILITY:** In no event shall GE be liable for any special, incidental, indirect or consequential damages of any kind in connection with this Order. Without prejudice to the foregoing, GE's cumulative liability under this Order, if any, shall not exceed a total amount of the Order.

22. **PUBLICATIONS :** Seller agrees that no acknowledgment or information concerning the Order and supplies or services provided hereunder will be made public by Seller without prior written agreement of GE.

23. **TRANSPORTATION:** Unless otherwise stipulated on the face of this Order, goods covered by this Order shall be shipped "FOB" Destination, title to said goods to pass to GE upon delivery. No charges for unauthorized transportation will be allowed. Any unauthorized shipment resulting in excess transportation charges must be fully prepaid by the Seller.

24. **MODIFICATION:** This agreement can be modified or rescinded only by a writing signed by both of the parties.

25. **INDUSTRIAL PROPERTY RIGHTS:** Industrial property means all intellectual property including patents, inventions, (whether or not the subject of patents or patent applications), copyrights, software, technical data and know-how (whether or not protected as a trade secret); such intellectual property rights do not, however, include trademarks, trade names or service marks. All Industrial Property of GE in existence prior to this Order shall remain the property of GE. All Industrial Property of Seller in existence prior to this Order (Existing Industrial Property) shall remain the property of Seller. All Industrial Property, other than Existing Industrial Property, first generated by Seller in the performance of this Order (Generated Industrial Property) shall be the property of GE and Seller shall deliver to GE all data, drawings and other documents or information pertaining to Generated Industrial Property upon completion of the Order; Seller further agrees to execute, or to have executed by appropriate persons, all legal documents necessary to assign intellectual property rights in Generated Industrial Property to GE. Seller grants to GE a right to use any Existing Industrial Property used or incorporated in or necessary for the use of Generated Industrial Property to the extent necessary to enable GE to use Generated Industrial Property. GE's rights to use Existing Industrial Property shall include the right to make and have made, use, distribute, sell, import and export, the Existing Industrial Property as it relates to Generated Industrial Property, and, with respect to Existing Industrial Property subject to copyright protection, the rights to reproduce, prepare derivative works, distribute, perform and display the Existing Industrial Property. This grant to GE of rights to use Existing Industrial Property is perpetual, irrevocable, and worldwide in scope. Seller shall not reverse engineer or otherwise attempt to determine GE's confidential information from any material or

information provided to Seller by GE under this Order.

26. DISPUTE RESOLUTION:

(a) The parties shall endeavour to resolve all disputes arising under or related to this contract, exclusively as per this Article. This Article shall remain effective even in the event that any party to this Agreement is subject to bankruptcy petition, an assignment for the benefit of creditors, or any insolvency proceeding. (b) All disputes and claims arising relating to this contract or the breach, termination or invalidation thereof shall upon written notice, be referred to a senior management representative from each of the parties who will confer in good faith to attempt to resolve the matter. The party sending the first written notice (the "Initial Notice") shall (1) set forth in detail all of its claims or issues in dispute and (2) designate a representative. The other party shall have five (5) business days to designate its representative and add additional claims not identified in the Initial Notice. The representatives shall have thirty (30) days from the date of the Initial Notice to resolve the identified issues. If they are unable to do so, either party may refer the matter to arbitration in accordance with the Arbitration and Conciliation Act, 1996. The venue for arbitration proceedings shall be Bangalore, India. All proceedings shall be conducted in English. The arbitrator's award shall be final and binding on the parties. Subject to the foregoing, the Parties shall submit to the exclusive jurisdiction of the courts of Bangalore, India. (c) All statements made and documents provided or exchanged in connection with this dispute resolution process shall be confidential and neither party shall disclose the existence, content, or result of the dispute to third parties other than outside counsel, except with the prior written consent of the other party. (d) The provisions of this Article shall not modify or displace the procedures specified in Article 16, Termination for Convenience. In addition, this Article shall not apply to nor bar, any party's proprietary or intellectual property right claims.

27. PROPER BUSINESS PRACTICES: Seller shall act in a manner consistent with GE's integrity policies, a copy of which is available on request to Seller. Seller agrees not to pay, promise to pay or authorize payment of any money or thing of value, directly or indirectly, to any person for the purpose of illegally or improperly inducing a decision or obtaining or retaining business in connection with this Order.

28. SECURITY AND CRISIS MANAGEMENT: Seller shall have and comply with a company security and crisis management policy, which shall be maintained and revised as requested by GE in anticipation of security risks relevant to Seller's business. Upon advance notice by GE, Seller shall make its facility available for inspection by GE's representative for the purpose of reviewing Seller's compliance with Seller's security improvement plan. Each party shall bear its own costs in relation to such inspection. All other costs associated with development and implementation of Seller's security improvement plan shall be borne by the Seller. If GE reasonably determines that Seller's policy or implementation does not protect GE's interests, GE may give Seller notice of such determination. Upon receiving such notice, Seller shall have forty-five (45) days thereafter to make policy changes and implement actions requested by GE. Seller's failure to take such actions shall give GE the right to terminate this purchase Order immediately without further compensation to Seller.

29. GOVERNING LAW AND LANGUAGE:

This Order is to be interpreted, governed and enforced in accordance with the laws of India, without reference to the choice of law provisions thereof. For the matters arising out of this Order competent court in Bangalore shall have exclusive jurisdiction. The parties hereby exclude the application of the United Nations Convention on Contracts for the International Sale of Goods. This Order has been made in the English language in two originals. A translated text of this Order may be provided by the Seller in another language at Seller's expense. The English text shall prevail for legal and language interpretations. If there are any discrepancies in the translation from the English version, GE and Seller are bound only by the English version of this Order. All communications, reports and notices hereunder shall be in the English language.

30. PERSONAL DATA:

(a) "Personal Data" includes any information relating to an identified or identifiable natural person; "GE Personal Data" includes any Personal Data obtained by Seller from GE; and "Processing" includes any operation or set of operations performed upon Personal Data, such as collection, recording, storage, alteration, retrieval, consultation, disclosure by transmission, blocking, or destruction. (b) Seller, including its staff, shall process GE Personal Data only on a need-to-know basis and only to the extent necessary to perform this Order. (c) Seller shall use reasonable technical and organizational measures to ensure the security and confidentiality of GE Personal Data. Seller shall immediately inform GE of any breach of this undertaking. (d) These undertakings shall remain in force until Seller no longer possesses GE Personal Data. Upon termination of this Agreement, for whatever reason, Seller shall stop Processing GE Personal Data, unless instructed otherwise by GE. (e) Seller agrees that GE may require Seller to provide certain Personal Data ("Seller Personal Data") such as the names, telephone numbers, and e-mail addresses of Seller's representatives and that GE may store such data in databases located and accessible globally and use it for purposes reasonably related to this Agreement.

31. INSURANCE Seller, including subcontractors as required, shall obtain and maintain for the duration of any work under this Order insurance in forms and amounts as is required by applicable law and as is satisfactory to GE. Seller agrees to name GE as an additional insured on all the above-mentioned policies. At GE's request, Seller shall furnish to GE a Certificate of Insurance completed by its insurance carrier(s) certifying that the required insurance coverages are in effect and will not be canceled or materially changed until thirty (30) days after prior written notice has been delivered to GE. It is the intent of both Parties that Seller's insurance be primary to any insurance owned or secured by GE. Nothing in this Paragraph shall be taken as limiting Seller's liability to GE or any other party.

32. EXTRA CHARGES : No extra charges of any kind will be permitted pursuant to this Order unless specifically agreed to in writing by GE.

33. RECORDS :

Unless this Order is totally priced on a firm fixed price basis, Seller shall maintain complete and accurate time records, supplier invoices, expense receipts and supporting data, and other evidence related to this Order in accordance with generally accepted accounting practices. All materials shall be preserved until the expiration of three (3) years from the completion of performance by Seller. GE shall have the right at any time during normal business hours to examine such records, which may include an evaluation of cost and fee data related to this Order. Adjustments in favor of GE arising from any audit performed by GE shall be recognized as an adjustment of any future payment due Seller or, if no future payment is due Seller, Seller shall pay the amount of any such adjustment to GE within thirty (30) days after completion of the audit.

34. INDEPENDENT CONTRACTOR: :

Seller is and shall remain for all purposes an independent contractor and it shall have no power, nor shall it represent that it has any power, to bind GE or to assume or create any obligation, expressed or implied, on behalf of GE.

35. KEY PERSONNEL :

At GE's request Seller shall immediately and permanently remove from any tasks any individuals provided by Seller whom GE considers incompetent, unsatisfactory or undesirable to GE. If key personnel are designated in the work description, Seller shall assign the designated personnel to the work under this Order, unless otherwise agreed by GE. If any key personnel become unavailable for reasons beyond Seller's control, Seller shall immediately notify GE and secure GE approval for substitution(s). Seller shall be solely and entirely responsible for Seller's acts (and those of Seller's personnel and subcontractors) while this Order is in effect, even if such personnel and subcontractors are not acting within the scope of employment. The Seller shall at all times assume all responsibility for the acts and omissions of its personnel and to ensure that the personnel comply with all applicable terms of this Order. Prior to providing any services to GE, GE may require any personnel to undergo a background check performed by a GE designated firm (at the Seller's cost). The Seller shall be fully and solely responsible for the supervision and payment of personnel and for all work performed by such personnel. All personnel shall remain employees of the Seller and it is specifically agreed that such employees cannot claim employment rights with GE under any circumstances

36. SURVIVAL OF TERMS :

Those provisions of the Order which by nature may be incapable of being performed or enforced prior to expiration or termination of the Order, or which suggest partial performance or enforcement following such expiration or termination, and in particular Articles 6, 7, 12, 13, 14, 18, 21, 24, 25, 26, 27, 31, and 36, shall survive any such expiration or termination of this Order.

37. GE'S REMEDIES :

All rights and remedies provided for herein are not exclusive and all rights and remedies of GE hereunder, at law or in equity, shall be cumulative and may be exercised singly or concurrently.

38. Seller will be required to enroll thier employees as "Beneficiaries" under Building and Other Construction Workers Welfare Board put up at Office of the Labour Officer cum Registering Officer under Building and Other Construction Workers (Regulation of Employment and Condition of Service) Act, 1996, Karmika Bhavana, Bannerughatta Road, Near Dairy Circle, Bangalore - 560 076 deployed for the purpose of carrying out repairs, alteration, renovation and maintenance of any building or other Construction works at GE India Industrial Pvt Ltd (Division: John F Welch Technology Centre, formerly GE India Technology Centre Pvt Ltd) within 30 days from the date of the commencement of the work and provide duly acknowledged documents from authorities for our records".

38. GST Compliance

The Seller shall continuously maintain a high GST compliance rating score as per the GST law. The Purchaser reserves the right to terminate this Purchase Order if the Seller fails to achieve/ maintain an appropriate GST compliance rating score. The Seller shall pass on the benefit of decreased cost, arising because any change in law, to the Purchaser as per the Anti profiteering provisions contained in the applicable GST laws. If any amount of credit, refund or any other benefit is denied or delayed to the Purchaser or any interest/ penal charge is imposed on Purchaser due to any non-compliance by the Seller (including but not limited to the failure to upload or incorrect disclosure of details on the GSTN portal or delay/ failure to deposit tax or due to non-furnishing or furnishing of incorrect/ incomplete documents by the Seller), the Seller shall be liable to reimburse/ recover the loss which accrues to the Purchaser on the aforesaid account. Alternatively, Purchaser shall be entitled to withhold the payment of all the subsequent invoices issued by the Seller.

Additionally, Seller shall comply with all the compliance requirements under GST law (as may be enacted). This shall include (but not limited to):

1. Issuing invoices/ debit notes/ revised invoices/ credit notes as per the prescribed format, containing all the information as is required for the Purchaser to avail input tax credit basis such invoices/ debit notes/ revised invoices;
2. Ensuring that the invoice issued by the Seller is received by the Purchaser within 15 days from the date of the issuance of the invoice by the Seller;
3. Submission of periodic returns as per the GST laws within specified time lines with complete and correct details as may be prescribed
4. Deposit of tax within the due dates as may be prescribed"

39. Motor Vehicle Safety Guidelines inside JFWTC

1. Speed limit inside JFWTC is 20 KMPH.
2. No usage of mobile while driving.
3. Overtaking and honking are prohibited.
4. No unauthorized driving inside campus.
5. Wear seatbelts while driving inside campus
6. Obey traffic signage's displayed inside campus.
7. Look out for pedestrian movement.
8. Wheel chock is mandatory for stationary vehicle.

- In addition to the other terms and conditions agreed to by the parties, delivery of goods/ services to GE shall be deemed to be complete only upon receipt of a GST compliant invoice at the email address, geitcapteam@ge.com within three days of the delivery of the Goods/ Services to GE. This invoice shall be sent as an attachment in the email by scanning the physically signed invoice OR a digitally signed invoice. Invoices sent to any other email address/ to any GE employees will not be considered for this purposes.

The vendor shall also send physical copy of the invoices along with any other documents as may be requested by GE, within 15 days of the delivery of Goods/ Services to the below mentioned Office. The Vendor shall be liable to make good the losses/ indemnify GE for any losses incurred by GE due to non-receipt of the physical invoices by GE arising out of any action from authorities in this regard. Without prejudice to any of its rights under law or any contract to recover any such losses, GE reserves its rights to set off any losses incurred by GE in this regard, against any amounts that may be due to the Vendor, whether occurring currently or occurring in the future. Notwithstanding anything contrary contained in the Purchase Order or any other documents as the case may be, the Seller shall comply with the above requirements”

Physical Invoices shall be sent to:-

AP bill desk

GE India Industrial Private Limited - JFWTC division

Plot No: 122, EPIP, Phase 2, Hoodi, Whitefield Road

Bangalore, KA 560066 India

40.As per the KSPCB & Plastic Waste Management Rules, 2022, Single Use Plastics are banned from using. To ensure compliance with the requirement, GEIPL would not accept any materials having the single use plastics which are listed as per KSPCB Notification. These are banned and should not be Sold/bought to GEIPL. Plastic Sheet used for Packaging should comply to **“Plastic sheet or like, which is not an integral part of multilayered packaging and cover made of plastic sheet used for packaging, wrapping the commodity shall not be less than 50 microns in thickness”**. If any of the plastic sheet used for packaging found to have less than 50 Microns, would not be accepted in the GEIPL Site.

41. Drug Use Policies: Service Provider will advise any SP Personnel who provides Services under this Agreement on Company's premises of Company's right to require an initial drug screening prior to the commencement of the assignment and, further, to require a drug screening at any time during the assignment either: (I) if the Company believes in good faith that the SP Personnel is under the influence of an illegal substance, or (ii) as a consequence of an accident caused by or involving the SP Personnel on Company's premises during the performance of this Agreement and likely to have been related to the SP Personnel' use of an illegal substance. Any drug screening shall be performed by the Service Provider at Service Provider's expense and Service Provider will address any positive results and handle accordingly. Service Provider Personnel will not be permitted to perform the Services if a positive result of said drug screen is determined.

GEIPL PURCHASE ORDER OF TERMS AND CONDITIONS (FOR SOFTWARE, SOFTWARE AND SERVICE)

INTEGRITY STATEMENT:

Each Party covenants that it is committed to unyielding integrity and will act in a manner consistent with the GE Integrity Guide for Suppliers, Contractors and Consultants, a copy of which is available in several languages at the following link:

<http://www.gesupplier.com/html/SuppliersIntegrityGuide.htm>, as may be amended or substituted from time to time. If you as a contracting party become aware of any situation that appears to be inconsistent with any of the policies mentioned in GE's Integrity: Spirit and the Letter booklet, you undertake to and shall communicate the same to Mr. Ashok Kumaraswamy (Phone: +91 80 40881537 email: Ashok.KA@ge.com) or you can report it to ombudsperson@corporate.ge.com

You also acknowledge the receipt of the Spirit and Letter Integrity Policy applicable to Suppliers also available at <https://www.ge.com/in/sites/www.ge.com.in/files/TheSpirit&TheLetter.pdf>, You have gone through the same and understood the contents. As a contracting party you shall sign a copy of the same and return along with this Agreement.

1. **ACCEPTANCE AND TERMS AND CONDITIONS:** (a) Seller accepts this Order and any changes by signing the acceptance copy and returning it to GE. Commencement of the services called for by this Order in the absence of Seller's written acknowledgment shall be deemed acceptance of this Order. (b) By acceptance of this Order, Seller agrees to be bound by and to comply with all the terms and conditions of this Order, including any supplements, and all specifications and other documents referred to in this Order. (c) This Order does not constitute an acceptance by GE of any offer to sell, quotation, or proposal. Reference in this Order to any such offer to sell, quotation, or proposal shall not constitute a modification of any of the terms and conditions of this Order.

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ATTEMPTED ACKNOWLEDGMENT OF THIS ORDER CONTAINING TERMS AND CONDITIONS INCONSISTENT WITH OR IN ADDITION TO THE TERMS AND CONDITIONS OF THIS ORDER IS NOT BINDING UPON GE UNLESS SPECIFICALLY ACCEPTED BY GE IN WRITING which under this Order shall not include email, AND GE HEREBY REJECTS ANY SUCH PROPOSED MODIFICATIONS. (d) Any acceptance, approval and/or payment made by GE in connection with work hereunder, shall not relieve Seller of the responsibility for completeness, timeliness, accuracy, fitness and quality of performance. 1. **LICENSE GRANT and TYPE.** Under this Agreement, Licensor grants to GE a non-exclusive, irrevocable, perpetual, transferable, worldwide license(s) to use and/or reproduce the Product as defined on the face of the Order Document. GE shall have the right to use, reproduce, and install, the Software in accordance with the License Type(s) specified on the Order Document. Definitions of the commonly-used License Type are as follows: a) **Enterprise License.** GE may install the Software on any and all GE computers and Networks worldwide and allow use by an unlimited number of Users; b) **Server License.** GE may install the Software on the number of central processing units (CPUs) specified on the Order Document and allow access by an unlimited number of Users. GE may install, de-install, and move the Software among GE's various Computers so long as the number of CPU concurrent installations at no time exceeds the number designated on the Order Document; c) **Concurrent/Named User License.** GE may install the Software on any and all Computers and Networks worldwide and allow access by the number of Users designated on the Order Document. d) **Node Locked Licenses:** GE may install the Software on a

19. **LIMITATION OF LIABILITY:** In no event shall GE be liable for any special, incidental, indirect or consequential damages of any kind in connection with this Order. Without prejudice to the foregoing, GE's cumulative liability under this Order, if any, shall not exceed a total amount of the Order.

20. **INSURANCE:** Seller, including subcontractors as required, shall obtain and maintain for the duration of any work under this Order insurance in forms and amounts as is required by applicable law and as is satisfactory to GE. Seller agrees to name GE as an additional insured on all the above-mentioned policies. At GE's request, Seller shall furnish to GE a Certificate of Insurance completed by its insurance carrier(s) certifying that the required insurance coverages are in effect and will not be canceled or materially changed until thirty (30) days after prior written notice has been delivered to GE. It is the intent of both Parties that Sellers insurance be primary to any insurance owned or secured by GE. Nothing in this Paragraph shall be taken as limiting Seller's liability To GE or any Other party.

21. **SELLERS CONFIDENTIAL OR PROPRIETARY INFORMATION:** Any knowledge or information which Seller shall have disclosed or may hereafter disclose to GE, and which in any way, relates to the services covered by this Order and GE's Material Schedule, shall not, unless otherwise specifically agreed to in writing by GE, be deemed to be confidential or proprietary information, and shall be acquired by GE, free from any restrictions (other than a claim for patent infringement), as part of consideration for this Order.

22. **WORK ON GE OR ITS CUSTOMER'S PREMISES:** If Sellers work under the Order involves operations by Seller on the premises of GE or one of its customers, Seller shall take all necessary precautions to prevent the occurrence of any injury to persons or damage to property during the progress of such work, and except to the extent that any such injury or damage is due solely to GEs or its Customers negligence, shall defend and indemnify GE against any claim which may result in any way from any act or omission of Seller, its agents, employees or subcontractors.

23. **INSOLVENCY:** If Seller ceases to conduct its operations in the normal course of business, including inability to meet obligations as they mature, or if any proceeding under bankruptcy or insolvency laws is brought by or against Seller, or a receiver for Seller is appointed or applied for, or

single machine and allow access to all users of that system.

2. SCOPE OF LICENSE USE. Regardless of the License Type, GE's users, regardless of location, shall access and use the Software in accordance with the following provisions: (i) copy and use the Product in support of GE's business operations; (ii) installation and use of the Product may be made for back-up or archival purposes, and for failover, disaster recovery, development, staging, technology integration, testing (including testing as part of any GE program to consolidate computer or network operations), and/or other such purposes, whether by GE or by Third Parties Acting strictly on behalf of GE.

3. OWNERSHIP: RESERVATION OF RIGHTS. All Products/Software are licensed and not sold. Licensor reserves all rights not expressly granted herein. All ownership rights in and to the Software and Documentation (and all copies thereof) shall solely vest in and be the property of Licensor, and no implied license or right of any kind is granted to GE. Except as expressly provided herein, GE shall not allow third parties to reproduce, copy, market, sell, distribute, lease, transfer, translate, modify, adapt, disassemble, decompile, or reverse engineer (except as allowed by law) the Software or Documentation. GE shall not pledge the Software or Documentation as collateral or otherwise, and shall not encumber such Software or Documentation with any lien or security interest.

4. DELIVERY AND INSTALLATION. The delivery date for the Products are specified on the Order Document. Time is of the essence with this Agreement. By no later than the specified delivery date(s), Licensor shall provide to GE, in electronic format (by dongle if software requires) and/or by computer media, the Software and all related Documentation, all necessary passwords, instructions, materials and/or information to allow successful installation of the Product and any updates to Software. Upon delivery of the Software to GE, GE will install the Software, or in the event installation by Licensor is included in the Order Document, Licensor shall promptly install the Software. Licensor certifies that any administrative accounts set up by Licensor for the installation of Software (or other purposes) can: (i) easily be disabled by GE; or (ii) that Licensor will transfer all such accounts and related passwords to GE - with GE being able to establish new passwords values unknown by Licensor - at or before the

completion of installation.
5. TECHNICAL INTEGRATION. If technical integration testing is indicated as an item on the Order Document, prior to delivery of the Product to GE, Licensor shall develop testing procedures and provide them to GE for its approval (such approval not to be unreasonably withheld). Such testing procedures shall be sufficient to test the functionality of the Product in GE's operating environment and using GE's data. Within thirty (30) days after installation of the Product, Licensor shall apply such testing procedures and, if such procedures are satisfied and the Product otherwise conforms to its specifications and the requirements of this Agreement, Licensor shall certify to GE that acceptance testing may commence. In the event that the Software fails to pass any of Licensor's testing procedures within said thirty (30) day-period, Licensor must make a good faith effort during the following thirty (30) days to remedy defects and functional/operational issues prohibiting successful testing. If testing fails after completion of this second thirty-day period, GE may cancel this Agreement and require immediate refund of all sums paid to Licensor, in addition to any other remedies accorded by law or under this Agreement.

6. ACCEPTANCE TESTING. (a) If the Order Document specifies "Acceptance Testing", then GE shall conduct acceptance testing of the Product within thirty (30) days of

an assignment for the benefit of creditors is made by Seller, GE may terminate this Order without liability, except for services previously performed, or goods previously delivered, covered by this Order.

24. GE'S INFORMATION: Seller shall keep confidential any technical, process or economic information provided by or derived from drawings, specifications and other data furnished by GE in connection with this Order and shall not directly or indirectly divulge, such information for the benefit of any other party without obtaining GE's prior written consent. Except as required for the efficient performance of this Order, Seller shall not use such information or make or permit copies to be made of such information without prior written consent of GE. If any reproduction is made without prior consent, notice referring to the requirements of the foregoing paragraph shall be provided thereon. If disclosures or reproductions are made that are inconsistent with this Article, Seller must provide immediate notice to GE and co-operate with GE to restrict further disclosures of GE's confidential information in violation with this Article. Upon completion or termination of this Order, Seller shall promptly return to GE all materials incorporating any such information and any copies thereof, except for one record copy. The Seller acknowledges the competitive value and confidential nature of GE's confidential information and that disclosure thereof to any third party could be harmful to GE, competitively and otherwise. If the Seller, or any party to whom the Seller transmits the confidential information pursuant to this Order, becomes legally compelled to disclose any of the confidential information, the Seller, to the extent permitted by law, shall provide the GE with prompt notice so that GE may seek a protective order or other appropriate remedy and shall cooperate in seeking reasonable protective arrangements requested by GE. If such protective order or other remedy is not obtained, the Seller shall furnish only that portion of the confidential information which, in the written opinion of its counsel, is legally required, and the Seller shall exercise its reasonable best efforts to obtain reasonable assurance that confidential treatment will be accorded the confidential information. The Seller acknowledges and agrees that, given the nature of the confidential information and the competitive or other damage that may result to GE if information contained therein is disclosed to any third party in breach of the obligations set forth in this Order, money damages may not be a sufficient remedy for any breach of this Order by the Seller, and that, in addition to all other remedies, GE may be entitled to specific performance and injunctive or other equitable relief as deemed proper or necessary by a court of competent jurisdiction as a remedy for any such breach.

25. ENTIRE AGREEMENT: This Order, with such documents as are expressly incorporated herein by reference, is intended by the parties as a final expression of their agreement with respect to terms as included herein, and is intended as a complete and exclusive statement of the terms of this agreement. No course of prior dealings between the parties and no usage of the trade shall be relevant to determine the meaning of this agreement even though the accepting or acquiescing party has knowledge of the nature of the performance and opportunity for objection.

26. WAIVER: No claim or right arising out of a breach of this contract can be discharged in whole or in part by a waiver or renunciation of the claim or right unless the waiver or renunciation is supported by consideration and is in writing signed by the aggrieved party. The failure of GE to enforce at any time or for any period of time any of the provisions hereof shall not be construed to be a waiver of such

Product installation provided that, if applicable, the Product has passed the technical interoperability and integration testing required elsewhere under this Agreement. Successful completion (as determined solely by GE) of acceptance testing will require GE's acceptance of the Product. If the Product fails to pass any of the GE testing procedures or fails to function properly or in conformity with any specifications set forth in the Documentation, other written materials relating to the Product provided to GE, Licensor will have fourteen (14) days, from date of receipt of notification of failure from GE, to correct such defect and cause the Product to successfully pass all such tests or functionality, failing which GE may cancel this Agreement and require immediate refund of all sums paid to Licensor under this Agreement. (b) In the event that errors identified during GE's acceptance tests prevent GE from continuing or completing its acceptance tests, then such thirty (30) day acceptance testing period shall be extended by the elapsed time taken by Licensor to rectify the errors, which shall not exceed fourteen (14) days. Successful completion of an acceptance test does not absolve Licensor from the responsibility to provide bug fix and security patches to GE throughout the Licensor defined

service life of the Software.
7. CUSTOMIZATION SERVICES. Should GE desire customizations or modifications to the Software or Documentation or other additional services related to the Product ("Additional Services"), such Additional Services shall be provided in accordance with the terms of a negotiated GE services order.

8. PRICES and PAYMENT: 8.1 All prices are firm and shall not be subject to change. Seller's price excludes all taxes, charges, fees, duties or levies applicable to the goods and/or services purchased under this Order. If GE is required by government regulation to withhold taxes for which Seller is responsible, GE shall deduct such withholding tax from payment to Seller and provide to Seller a valid tax receipt in Seller's name. Should either party realize that any tax included or omitted as a result of the transactions hereunder was made in error, the Parties shall cooperate to resolve such overpayment or underpayment and to further assist in refunding or charging of any mistaken payments. Neither party is responsible for taxes on the other party's income or the income of the other party's personnel or subcontractors. If no firm or other price appears, no payment in excess of any monetary limitation appearing on the face of the Order shall be permitted without the prior written approval of GE. Pricing shall not be adjusted without prior written approval of GE. 8.2 Unless otherwise stated on the face of this Order, payment terms are due net Hundred and Twenty (120) days from the payment start date. The payment start date is the later of 1) The delivery date identified on the Order,

(2) The received date of the services in GE's receiving system or (3) The date of receipt of valid invoice by GE. Seller's invoice shall in all cases bear GE's Order number. GE shall be entitled to reject any invoices failing to note GE's Order number or that are otherwise inaccurate. Any resulting delay in payment shall be Seller's responsibility. Seller warrants it is authorized to receive payment in the currency stated in this Order. 8.3 Notwithstanding anything set forth in this Order, should Seller fail to furnish any or all of the Compliance Documents (as defined below) within the timelines prescribed by GE or otherwise fail to co-operate with GE during the Compliance Audit (as defined below) conducted by GE, GE may at its sole discretion withhold any or all payments due to the Seller under this Order. 8.4 Seller agrees it shall ensure that GE receives the status of a most-favored customer with respect to matters of pricing for services sold hereunder. If Seller agrees to more favorable terms to any of its other customers at the time of negotiations, or during the term of this Agreement, Seller will, within thirty (30) calendar days, notify GE in writing and ensure GE receives these more favorable pricing terms

provisions or of the right of GE thereafter to enforce each and every such provision.

27. PUBLICATIONS: Seller agrees that no acknowledgment or information concerning the Order and supplies or services provided hereunder will be made public by Seller without prior written agreement of GE.

28. EXTRA CHARGES: No extra charges of any kind will be permitted pursuant to this Order unless specifically agreed to in writing by GE.

29. MODIFICATION: This agreement can be modified or rescinded only by a writing signed by both of the parties.

30. INDUSTRIAL PROPERTY RIGHTS: Industrial property means all intellectual property including patents, inventions, (whether or not the subject of patents or patent applications), copyrights, software, technical data and know-how (whether or not protected as a trade secret); such intellectual property rights do not, however, include trademarks, trade names or service marks. All Industrial Property of GE in existence prior to this Order shall remain the property of GE. All Industrial Property of Seller in existence prior to this Order ("Existing Industrial Property") shall remain the property of Seller. All Industrial Property, other than Existing Industrial Property, first generated by Seller in the performance of this Order ("Generated Industrial Property") shall be the property of GE and Seller shall deliver to GE all data, drawings and other documents or information pertaining to Generated Industrial Property upon completion of the Order; Seller further agrees to execute, or to have executed by appropriate persons, all legal documents necessary to assign intellectual property rights in Generated Industrial Property to GE. Seller grants to GE a right to use any Existing Industrial Property used or incorporated in or necessary for the use of the Generated Industrial Property to the extent necessary to enable GE to use the Generated Industrial Property. GE's rights to use Existing Industrial Property shall include the right to make and have made, use, distribute, sell, import and export, the Existing Industrial Property as it relates to the Generated Industrial Property, and, with respect to Existing Industrial Property subject to copyright protection, the rights to reproduce, prepare derivative works, distribute, perform and display the Existing Industrial Property. This grant to GE of rights to use Existing Industrial Property is perpetual, irrevocable, and worldwide in scope. Seller shall not reverse engineer or otherwise attempt to determine GE's confidential information from any material or information provided to Seller by GE under this Order.

31. DISPUTE RESOLUTION: (a) The parties shall endeavour to resolve all disputes arising under or related to this contract, exclusively as per this Article. This Article shall remain effective even in the event that any party to this Agreement is subject to bankruptcy petition, assignment for the benefit of creditors, or insolvency proceeding. (b) All disputes and claims arising relating to this contract or the breach, termination or invalidation thereof shall upon written notice, be referred to a senior management representative from each of the parties who will confer in good faith to attempt to resolve the matter. The party sending the first written notice (the 'Initial Notice') shall (1) set forth in detail all of its claims or issues in dispute and (2) designate a representative. The other party shall have five (5) business days to designate its representative and add additional claims not identified in the Initial Notice. The representatives shall have 30 days from the date of the Initial Notice to resolve the identified issues. If they are

for all services provided hereunder retroactive to the date of such offer - and for so long as those terms are offered to other customers. Upon such notice, this Agreement will be deemed by all parties to have been amended to incorporate all such favorable changes - excepting any changes as may be rejected in writing by GE. Seller agrees to provide GE with certification of compliance with this Article, completed by an authorized Seller official, upon request by GE.

9. **DEFAULT.** Time is of the essence with this Order. In the event Seller for any reason anticipates difficulty in complying with the required service schedule, or any other obligations under this Order, Seller shall promptly notify GE in writing. Except in instances of Force Majeure (as defined below), and without the fault or negligence of Seller or its suppliers, direct and indirect at every subcontract level, GE may by written notice of default to Seller (a) terminate the whole or any part of this Order immediately if: (1) Seller fails to perform within the time specified herein or any extension thereof; or (2) Seller fails to perform any other provisions of this Order or instructions of GE, or fails to make progress as to endanger performance of this Order in accordance with its terms, and in either circumstance does not cure such failure within a period of ten (10) days or longer period as GE may authorize in writing after receipt of notice from GE specifying such failure; or (3) Seller fails to furnish the Compliance Documents within the timelines specified by GE or otherwise fails to co-operate with GE or its authorized auditors in its conduct of such Compliance Audit(s) in accordance with the applicable policies, from time to time and (b) procure, upon such terms as it shall deem appropriate, supplies and services similar to those so terminated. Seller shall continue performance of this Order to the extent not terminated and shall be liable to GE for any excess costs for such similar supplies or services. If it is determined that GE has improperly terminated this Order for default, such termination shall be deemed to be a Termination for Convenience. As an alternate remedy, and in lieu of termination for default, GE, at its sole discretion, may elect to (1) extend the Order schedule and/or (2) waive other deficiencies in Sellers performance, in which case an equitable reduction in the purchase price shall be negotiated. The rights and remedies of GE provided in this Article shall not be exclusive and are in addition to any other rights and remedies provided by law or under this Order.

10. **FORCE MAJEURE:** Neither party shall be liable to the other for delays or failures in performance resulting from causes beyond the reasonable control of that party, including, but not limited to, acts of God, labour disputes or disturbances, material shortages or rationing, riots, acts of war, governmental regulations, communication or utility failures, or casualties ("**Force Majeure**"); provided that each party subject to any event of Force Majeure shall have given notice within a period of fifteen (15) days from the date of Force Majeure occurrence of any such anticipated default, failure or delay as soon as reasonably possible after it obtains, or reasonably should have obtained, as the case may be, knowledge of the conditions or circumstances constituting an event of Force Majeure, and shall, to the extent reasonably possible, use its best efforts to remove or remedy such cause.

11. **TERMINATION FOR CONVENIENCE:** GE may terminate all or any part of this Order at any time by written notice to Seller. Upon termination, GE and Seller shall negotiate termination charges which will compensate Seller for costs reasonably incurred prior to the date of termination, including profit of such costs, which will be identified by Seller within thirty (30) days of termination.

12. **WARRANTIES:** Seller warrants that (a) the Seller has all requisite corporate power and authority to execute, deliver and perform its obligations under this Order (b) Sellers

unable to do so, either party may refer the matter to arbitration in accordance with the Arbitration and Conciliation Act, 1996. The venue for arbitration proceedings shall be Bangalore, India. All proceedings shall be conducted in English. The arbitrator's award shall be final and binding on the parties. Subject to the foregoing, the Parties shall submit to the exclusive jurisdiction of the courts of Bangalore, India. (c) The parties intend all statements made and documents provided or exchanged in connection with this dispute resolution process to be confidential and neither party shall disclose the existence, content, or result of the dispute to third parties other than outside counsel, except with the prior written consent of the other party. (d) The provisions of this Article shall not modify or displace the procedures specified in Article 11, Termination for Convenience. In addition, this Article shall not apply to nor bar, any party's proprietary or intellectual property right claims.

32. **RECORDS:** Unless this Order is totally priced on a firm fixed price basis, Seller shall maintain complete and accurate time records, supplier invoices, expense receipts and supporting data, and other evidence related to this Order in accordance with generally accepted accounting practices. All materials shall be preserved until the expiration of three (3) years from the completion of performance by Seller. GE shall have the right at any time during normal business hours to examine such records, which may include an evaluation of cost and fee data related to this Order. Adjustments in favor of GE arising from any audit performed by GE shall be recognized as an adjustment of any future payment due Seller or, if no future payment is due Seller, Seller shall pay the amount of any such adjustment to GE within thirty (30) days after completion of the audit.

33. **INDEPENDENT CONTRACTOR:** Seller is and shall remain for all purposes an independent contractor, and it shall have no power, nor shall it represent that it has any power, to bind GE or to assume or create any obligation, expressed or implied, on behalf of GE.

34. **KEY PERSONNEL:** At GE's request Seller shall immediately and permanently remove from any tasks any individuals provided by Seller whom GE considers incompetent, unsatisfactory or undesirable to GE. If key personnel are designated in the work description, Seller shall assign the designated personnel to the work under this Order, unless otherwise agreed by GE. If any key personnel become unavailable for reasons beyond Seller's control, Seller shall immediately notify GE and secure GE approval for substitution(s). Seller shall be solely and entirely responsible for Sellers acts (and those of Sellers personnel and subcontractors) while this Order is in effect, even if such personnel and subcontractors are not acting within the scope of employment. The Seller shall at all times assume all responsibility for the acts and omissions of its personnel and to ensure that the personnel comply with all applicable terms of this Order. Prior to providing any services to GE, GE may require any personnel to undergo a background check performed by a GE designated firm (at the Sellers cost). The Seller shall be fully and solely responsible for the supervision and payment of personnel and for all work performed by such personnel. All personnel shall remain employees of the Seller and it is specifically agreed that such employees cannot claim employment rights with GE under any circumstances.

35. **SELLER'S TESTIMONY:** Upon GE's written request, Seller shall provide testimony on behalf of GE for any local, state or central court or administrative agency concerning all or

and the subcontractor's performance of the obligations under this Order will not constitute (i) a violation of any judgment, order, or decree; (ii) a default under any material contract by which it or they are bound; or (iii) an event that would, with notice and/or lapse of time, constitute such a default; (c) all goods and/or services sold pursuant hereto will be free of any claim by any third person and that Seller will convey clear title to GE; (d) all services furnished hereunder shall be performed by technically competent and qualified personnel in a safe and workmanlike manner, shall conform to the requirements of this Order including any specifications attached or referenced herein, shall be performed in accordance with the highest generally accepted professional standards associated with the particular industry or trade and shall be fit for the purpose intended; (e) all services provided and goods developed pursuant hereto will be of new (unless expressly specified otherwise) merchantable quality, free from defects in design, workmanship and materials, fit for the particular purpose(s) for which purchased and provided in strict accordance with the specifications, samples, drawings, designs and other requirements (including performance specifications) approved or adopted by GE; and (f) Seller has all required permits and licenses necessary to perform the services and that its services will conform with all applicable permits and licenses. Copies of such permits or licenses shall be provided to GE upon request. Seller will promptly notify GE in writing in the event any permit or license related to Seller's authorization to perform hereunder is revoked or expired. All warranties contained in this Order shall be effective for a period of not less than one (1) year after acceptance of all of the goods and/or services delivered and/or performed hereunder. In the event of any nonconformance with any warranty applicable to this Order, Seller shall correct such nonconformance, and any damage resulting therefrom, at its cost and to GE's satisfaction. GE shall not be billed for any task(s) performed unsatisfactorily or defective parts, materials and equipment and shall be reimbursed within thirty (30) days by Seller upon demand of GE if an invoice has been previously paid for such improper or defective work or goods. All expenses (including, but not limited to, shipping, manufacturing and labour expenses) incurred by GE in the exercise of its rights hereunder, at law or in equity, shall be reimbursed by the Seller.

13. GE'S PROPERTY: Unless otherwise agreed in writing, all tools, equipment or material of every description furnished to Seller by GE or specially paid for by GE, and any replacement thereof, or any materials affixed or attached thereto, shall be and remain the personal property of GE. Such property, and whenever practical each individual item thereof, shall be plainly marked or otherwise adequately identified by Seller as "Property of General Electric" and shall be safely stored separate and apart from Seller's property. Seller shall not substitute any property for GE's property and shall not use such property except in filling GE Orders. Such property while in Seller's custody or control shall be held at Seller's risk, shall be kept insured by Seller at Seller's expense in an amount equal to the replacement cost with loss payable to GE and shall be subject to removal at GE's written request, in which event Seller shall prepare such property for shipment and shall redeliver to GE in the same condition as originally received by Seller, reasonable wear and tear excepted, all at Seller's expense. GE's property shall further include GE's software, technical data, know-how and any intellectual property rights that may be provided to the Seller pursuant to the execution of this Order, which property is to be returned to GE at the termination (by reason of completion

part of the work performed hereunder by Seller at no additional cost to Seller at GE.

36. SURVIVAL OF TERMS: Those provisions of the Order which by nature may be incapable of being performed or enforced prior to expiration or termination of the Order, or which suggest partial performance or enforcement following such expiration or termination, and in particular Articles 12, 13, 18, 19, 20, 24, 27, 30,31,32, 33, 37, and 42, shall survive any such expiration or termination of this Order.

37. GE'S REMEDIES: All rights and remedies provided for herein are not exclusive and all rights and remedies of GE hereunder, at law or in equity, shall be cumulative and may be Exercised Singly or concurrently.

38. PROPER BUSINESS PRACTICES: Seller shall act in a manner consistent with GE's integrity policies, a copy of which is available on request to Seller, all laws concerning improper or illegal payments and gifts or gratuities, and agrees not to pay, promise to pay or authorize payment of any money or thing of value, directly or indirectly, to any person for the purpose of illegally or improperly inducing a decision or obtaining or retaining business in connection with this Order. Further, in the execution of its obligations under this Order, Seller shall take the necessary precautions to prevent injury to persons or to property.

39. SECURITY AND CRISIS MANAGEMENT: Seller shall have and comply with a company security and crisis management policy, which shall be maintained and revised as requested by GE in anticipation of security risks relevant to Seller's business. Upon advance notice by GE, Seller shall make its facility available for inspection by GE's representative for the purpose of reviewing Seller's compliance with Seller's security improvement plan. Each party shall bear its own costs in relation to such inspection. All other costs associated with development and implementation of Seller's security improvement plan shall be borne by the Seller. If GE reasonably determines that Seller's policy or implementation does not protect GE's interests, GE may give Seller notice of such determination. Upon receiving such notice, Seller shall have forty-five (45) days thereafter to make policy changes and implement actions requested by GE. Seller's failure to take such actions shall give GE the right to terminate this purchase Order immediately without further Compensation to Seller.

40. INSPECTION: All goods and materials related in any way to the services provided under this Order shall be subject to inspection and test upon reasonable notice by GE and its customer or representative at all times and places, including sites where the materials and services are created or performed, whether at Seller's premises, Seller's suppliers premises or elsewhere, to assess: 1) work quality; 2) conformance with GE's specifications; and 3) conformance with Seller's representations, warranties and covenants. If any inspection or test is made on Seller's or its suppliers premises, Seller, without additional charge, shall provide all reasonable access and assistance for the safety and convenience of inspectors. If specific GE tests, inspections or witness points ('inspections') are included in this Order, the services shall not be performed, nor goods delivered, without an inspector's release or written waiver of inspection with respect to each such point; however, GE shall not be permitted to unreasonably delay performance; and Seller shall notify GE in writing at least twenty (20) days prior to each of Seller's scheduled final and intermediate inspections. GE's final inspection, to include acceptance or rejections, shall be made promptly after performance,

or otherwise) of this Order.

14. **CHANGES:** GE may at any time, in writing, make any changes within the general scope of this Order. If any such changes cause an increase or decrease in cost or time required for performance under this Order, an equitable adjustment shall be made in the contract price and/or completion date and the Order shall be modified in writing accordingly. Any claim by Seller for adjustment under this Article must be asserted within thirty (30) days from the date of receipt by Seller of the notification of change; provided, however, that GE, if it so chooses, may receive and act upon any such claim asserted at any time prior to final payment under this contract. Any change in this Order shall be authorized only by a duly executed Order amendment hereto.

15. **NON-ASSIGNMENT:** Assignment of this Order or any interest herein without written consent of GE shall be void.

16. **SET-OFF:** GE shall be entitled at all times to set-off any amount owed at any time by Seller to GE or its affiliates against any amount payable at any time by GE in connection with this Order.

17. **COMPLIANCE WITH LAWS:**

17.1 *General.* Seller represents, warrants, and certifies that it will comply with applicable central, state, provincial or local law, regulation, directive or ordinance and all lawful Orders, rules, and regulations issued thereunder, including without limitation those regarding environmental health and safety and records retention. Seller shall also comply with good industry practices, including the exercise of that degree of skill, diligence, and prudence reasonably expected from a competent and lawful Seller engaged in the same type of trade under similar circumstances. No forced or prison labour, or labour in violation of minimum working age law in the country of manufacture, may be used in connection with this Order. If such labour is determined to have been used in connection with this Order, GE shall have the right to immediately terminate the Order without further compensation. Seller agrees to cooperate fully with any inspection efforts of GE intended to verify Sellers compliance with this Article. Seller agrees to provide at GE's request certifications of any applicable legal requirements or to update any and all certifications, representations and warranties under this Order, in form and substance satisfactory to GE. 17.2 *EHS.* Seller represents, warrants, and certifies that it will take appropriate actions to provide a safe and healthy workplace, and to protect local environmental quality; and, has established an effective program to ensure any suppliers it uses under this Order will be in conformance with this Order. In addition, Seller shall comply with any provisions, certifications (including updates), representations, agreements or contract clauses required to be included or incorporated by reference or operation of applicable law in the Order.

17.3 *GE has the right to terminate the contract for safety problems without any penalty to GE.* 17.4 *Export Control Compliance:* a) In the event Seller transfers material, data, and proprietary information of any type, Seller shall be responsible for knowledge of and compliance with all applicable export laws and regulations of the country from which Seller transfers such data. The Seller hereto agrees that such compliance shall include that none of the material, data and proprietary information, nor the direct product of such material, data and proprietary information will be exported or re-exported directly or indirectly if prohibited by law. Seller hereto agrees that no

except as otherwise provided in this Order. Seller shall provide and maintain an inspection and process control system acceptable to GE and its Customer and shall keep complete records available to GE for three (3) years after completion of this Order. The conduct of or failure to conduct inspections, audits or tests, or the receipt of approvals or consents from GE, pursuant to any Article of this Order, shall not relieve Seller from its obligations nor impose liabilities on GE, unless specifically stated in writing by GE.

41. **PERSONAL DATA PROTECTION:** (a) "Personal Data" includes any information relating to an identified or identifiable natural person that is obtained by Seller from GE; "GE Personal Data" includes any Personal Data obtained by Seller from GE; and "Processing" includes any operation or set of operations performed upon Personal Data, such as collection, recording, organization, storage, adaptation or alteration, retrieval, accessing, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, blocking, erasure or destruction. (b) Seller, including its staff, shall view and Process GE Personal Data only on a need-to-know basis and only to the extent necessary to perform this Agreement or GE's further written instructions. (c) Seller shall use reasonable technical and organizational measures to ensure the security and confidentiality of GE Personal Data in order to prevent accidental, unauthorized or unlawful destruction, modification, disclosure, access or loss. (d) Seller shall notify GE without unreasonable delay of any Security Breach involving any GE Personal Data, where "Security Breach" is defined as any event involving an actual, potential or threatened compromise of the security, confidentiality or integrity of the data, including but not limited to any unauthorized access or use. Seller shall also provide GE with a detailed description of the Security Breach, the type of data that was the subject of the Security Breach, the identity of each affected person, and any other information GE may request concerning such affected persons and the details of the breach, as soon as such information can be collected or otherwise becomes available. Seller agrees to take action immediately, at its own expense, to investigate the Security Breach and to identify, prevent and mitigate the effects of any such Security Breach, and to carry out any recovery or other action (e.g., mailing statutory notices) necessary to remedy the Security Breach. The content of any filings, communications, notices, press releases, or reports related to any Security Breach ("**Notices**") must first be approved by GE prior to any publication or communication thereof to any third party. Seller shall pay for or reimburse GE for all costs, losses and expenses relating to any Security Breach, including without limitation, the cost of Notices. (e) Upon termination of this Agreement, for whatever reason, Seller shall stop the Processing of GE Personal Data, unless instructed otherwise by GE, and these undertakings shall remain in force until such time as Seller no longer possesses GE Personal Data. (f) Seller understands and agrees that GE may require Seller to provide certain Personal Data (Seller Personal Data) such as the name, address, telephone number, and e-mail address of Sellers representatives, and that GE and its affiliates and their contractors may store such data in databases located and accessible globally by their personnel and use it for purposes reasonably related to the performance of this Agreement.

42. **GOVERNING LAW AND LANGUAGE:** This Order is to be interpreted, governed, and enforced in accordance with the laws of India, without reference to choice of law provisions thereof. Courts in Bangalore shall have exclusive jurisdiction for all matters arising out of this Order. The parties hereby exclude application of the United Nations Convention on

GE proprietary information, material and data arising under this Order, nor the direct product of such, will be transferred directly or indirectly, to any third party, or exported or re-exported without express written authorization of GE. b) Seller will comply with all applicable export and import (customs) laws and regulations of all countries involved. Violation of any such laws or regulations by Seller will be cause for immediate termination by GE. Seller agrees to indemnify GE for any costs incurred as a result of the Seller's failure to meet the obligations of this Article.

c) In connection with performance of any work under this ORDER, Seller, at its own cost, shall be responsible for: (1) determining the extent to which any government-funded intellectual property will be used; (2) and if so, obtaining on behalf of GE a license under which the government shall grant GE the unlimited right to use such intellectual property; determining whether, and the extent to which, export licenses are required, under this Order from Sellers country to GE; and obtaining the required export licenses.

d) All of GE'S obligations under this Order are conditional upon the issuance of intellectual property and/or export licenses by the government granting GE the right to use such government-funded intellectual property and/or to export from Sellers country all deliverables, whether tangible or intangible, under this Order.

17.5 Compliance Audit: a) GE may from time to time in accordance with the prevalent GE policy(ies) conduct a compliance audit to determine whether the Seller is compliant with various labour or other legislations prevalent at the time of such audit ("Compliance Audit").

b) For the purpose carrying out such Compliance Audit, GE may request Seller to provide to GE, its internal or external auditors, data, documents and records maintained or required to be maintained by Seller under applicable labour or other legislations ("Compliance Documents"). The Seller shall upon the request of GE or its authorized auditors and within such timeframes as provided, furnish such Compliance Documents and shall co-operate with GE or its authorized auditors in its conduct of such Compliance Audit.

18. INDEMNIFICATION: Seller assumes full responsibility for and agrees to save, indemnify, defend and hold harmless GE from any and all claims, losses, liabilities, damages to property, injuries (including, but not limited to, death) to persons (including, but not limited to, employees of Seller and GE), fines, penalties (stipulated or otherwise), fees (including, but not limited to, legal fees), and all other costs and expenses of whatsoever kind or nature caused by, arising out of, or in any way resulting from, acts or omissions or misconduct or failure of Seller, its directors, officers, employees, agents, subcontractors and/or sub vendors at any tier, unless resulting from GE's sole negligence. Seller shall, upon notice, defend, indemnify and hold GE harmless against any claim, suit or proceeding based on a claim that any information, design, software, data, instruction, or material ("material") furnished under this Order constitutes an infringement of any patent, copyright, or other proprietary right of any third-party, Seller shall pay all damages and costs awarded therein and associated therewith. In the event said material is believed by GE to infringe or is enjoined by suit, Seller shall at its own expense and option: (a) procure for GE and its Customers the right to continue using said material; (b) replace the infringing material with conforming, non-infringing equivalents; or (c) modify the material so it conforms to the requirements of this Order and becomes non-infringing. However, upon Sellers showing of an inability to GE's satisfaction to do any of the foregoing, Seller shall, at GE's option, remove said material and refund any fees paid by GE for the infringing material and the development, transportation, and installation thereof.

Contracts for the International Sale of Goods.

43. All Sellers are requested to follow the following additional information / documents requirement for the smooth processing of your invoice at our end. For Service Bills: 1. Two copies of invoice one marked original and other duplicate. 2. Invoice to be raised to "M/s **GE India Industrial Private Limited**, (Division: John F Welch Technology Centre, formerly GE India Technology Centre Pvt Ltd) address as provided in Purchase Order. 3. PAN of the Seller (Please mention the name in the PAN no in case of proprietary concern). 4. GST Registration Number of the service provider. For all onsite manpower supply/ related services Seller need to submit the copies of the previous months PF & ESI Challan for the previous month, if ESI is not applicable attach a declaration for the same.

In case of Supply 1. Two copies of invoice one marked original and other duplicate. 2. Invoice to be raised to "M/s **GE India Industrial Pvt Limited** (Division: John F Welch Technology Centre, formerly GE India Technology Centre Pvt Ltd) address as provided in PO. 3. Suppliers should mention GST No. **29AAACG4901D1Z0** in all copies of the Invoice.

38. GST Compliance:

The Seller shall continuously maintain a high GST compliance rating score as per the GST law. The Purchaser reserves the right to terminate this Purchase Order if the Seller fails to achieve/ maintain an appropriate GST compliance rating score. The Seller shall pass on the benefit of decreased cost, arising because any change in law, to the Purchaser as per the Anti profiteering provisions contained in the applicable GST laws. If any amount of credit, refund or any other benefit is denied or delayed to the Purchaser or any interest/ penal charge is imposed on Purchaser due to any non-compliance by the Seller (including but not limited to the failure to upload or incorrect disclosure of details on the GSTN portal or delay/ failure to deposit tax or due to non-furnishing or furnishing of incorrect/ incomplete documents by the Seller), the Seller shall be liable to reimburse/ recover the loss which accrues to the Purchaser on the aforesaid account. Alternatively, Purchaser shall be entitled to withhold the payment of all the subsequent invoices issued by the Seller.

Additionally, Seller shall comply with all the compliance requirements under GST law (as may be enacted). This shall include (but not limited to):

1. Issuing invoices/ debit notes/ revised invoices/ credit notes as per the prescribed format, containing all the information as is required for the Purchaser to avail input tax credit basis such invoices/ debit notes/ revised invoices;
2. Ensuring that the invoice issued by the Seller is received by the Purchaser within 15 days from the date of the issuance of the invoice by the Seller;
3. Submission of periodic returns as per the GST laws within specified time lines with complete and correct details as may be prescribed
4. Deposit of tax within the due dates as may be prescribed"